§ 190.78 Identity theft in the third degree.

A person is guilty of identity theft in the third degree when such person knowingly and with intent to defraud assumes the identity of another person by presenting themself as that other person, or by acting as that other person or by using personal identifying information of that other person, and thereby:

1. obtains goods, money, property or services or uses credit in the name of such other person or causes financial loss to such person or to another person or persons; or

2. commits a class A misdemeanor or higher level crime.

Identity theft in the third degree is a class A misdemeanor.